

Referral to Stage 2 — clause 1.11.2(b): attendance, roster, leave and pay from 26 June 2026

Cory Lea Shepherd, A03 Switchboard Services, Logan Hospital · MSH-INJ-5795 · CLM-317073 · 10 August 2026

To: LBH Human Resources · Copies: Ms Chloe Taylor, Manager, Switchboard Services; Mr Scott Hughes, Director, Corporate Services; LBH Injury Management; Mr Heath Moran and Ms Emily Petering, Together Queensland

Attachments: (1) Notice of dispute, 3 August 2026; (2) Ms Taylor's letter, 4 August 2026; (3) my response of 4 August 2026 (sent 5 August 2026)

Dear Human Resources team,

I refer the dispute lodged on 3 August 2026 to Stage 2 under clause 1.11.2(b) of the Queensland Public Health Sector Certified Agreement (No. 12) 2025 (EB12), and I ask that it be routed to the appropriate management representative, who under the clause shall arrange a conference of the parties. Given the matters set out in my letter to the Chief Executive of 3 August 2026, and part 5 of the Stage 1 notice, I ask that the representative be an officer independent of the matters in dispute.

1 Why the referral is made

Stage 1 has concluded unresolved. The record is short:

- 1.1 The dispute was acknowledged as validly lodged on 4 August 2026: "Your dispute has been lodged in accordance with clause 1.11.2(a) of the Queensland Public Health Sector Certified Agreement (No. 12) 2025 (EB12)."
- 1.2 The 24-hour discussion did not occur. The Health Service's letter of 4 August 2026 states: "the 24-hour timeframe specified in the clause will not be achieved."
- 1.3 No Stage 1 discussion has taken place at any point in the seven days, notwithstanding that my response of 4 August 2026 (sent 5 August 2026) offered availability on Wednesday 5 and Thursday 6 August, from 9:00am to 5:00pm, and other times including outside business hours.
- 1.4 That response set out, at its section 2, five facts and invited correction; none has been corrected. It asked, at its section 3, seven questions so that the correct arrangement could be applied, and asked that any answer sitting with a more senior decision-maker be escalated within Stage 1 so the seven days were not lost. None of the seven questions has been answered.
- 1.5 The letter of 4 August 2026 is the only communication received from the Health Service during the Stage 1 period. My response of 4 August 2026 (sent 5 August 2026) has not been answered. The matters in dispute accordingly remain unresolved: the instrument under which I am held from work has not been identified (question 3.1), the status quo under clause 1.11.4 has not been restored, and the leave and pay position from 26 June 2026 remains as it was.
- 1.6 My response of 4 August 2026 (sent 5 August 2026) stated that I did not consent to my recreation leave being applied to the period 20 July to 2 August 2026 and requested special leave on full pay under Directive 12/24: Special Leave (applied by clause 9.12.1 of EB12) and HR Policy C7 instead. That request has not been answered. Any leave applied is, per that response, recorded as applied at the Health Service's initiative, without my consent, without prejudice to the dispute, and subject to re-credit.

My response foreshadowed this referral in terms: "If the dispute is unresolved by 10 August I will refer it to Stage 2 as the clause provides." That date has been reached, the dispute remains unresolved, and this is that referral. Clause 1.11.5 provides that "no party shall act in a manner unreasonably or intentionally delay the timely resolution of a dispute".

2 What the conference needs to resolve

- 2.1 The instrument and status question: what decision prevents my attendance since 26 June 2026, made by whom, on what date, under what power; whether I am suspended from duty (and if so under what provision, including whether section 101 of the Public Sector Act 2022 applies); and if not suspended, what my employment status is. Asked in the notice of 3 August (sections 2.1, 2.6 and 4(b)–(c)), in my response (questions 3.1 to 3.5), and in

earlier correspondence; unanswered. Related questions in my response also concern recreation leave timing under section 33 of the Industrial Relations Act 2016 (question 3.3) and the basis for any sick leave coding (question 3.4).

- 2.2 Pay and leave: wages for the period from 26 June 2026; re-credit of all leave debited; the coding of the absence (special leave on full pay under Directive 12/24 and HR Policy C7 was requested in my response of 4 August 2026, sent 5 August 2026); the "income protection" characterisation applied from 13 July 2026, under which I receive neither wages nor benefit (my response, section 5); and cessation of further debits per clause 1.11.4 — the status quo before this dispute emerged was that I was rostered, working and paid.
- 2.3 Return to work: the Employee Capabilities Checklist of 3 July 2026 certifies me fit for work with restrictions and records the pattern as a "continuation of existing arrangement"; my return-to-work proposal of 3 August 2026 stands; no Return-to-Work Plan exists. The Workplace rehabilitation standard (QH-IMP-401-5) requires that a worker be informed of the appropriate dispute resolution process where the worker does not agree with elements of a proposed workplace rehabilitation plan or suitable duties program; I have not been informed of any such process.
- 2.4 The position communicated to my insurer: on 4 August 2026 my income protection insurer recorded, on information from the Health Service, that the Health Service is "currently unable to accommodate a graduated return to work due to the restrictions identified in your Work Capabilities Checklist." I have not been given that position directly, by its maker, with reasons. My response, section 4, sets out what is asked; it remains open.
- 2.5 Work health and safety: the feedback required by clause 7.1.11 on the matters I have raised (including matters of the kind listed in clause 7.1.5 — management of ill or injured employees, psychosocial issues and implementation of the Managing the risk of psychosocial hazards at work Code of Practice 2022, and related items); and a psychosocial risk assessment of the work area under clause 7.2 (including consultation contemplated by clause 7.2.2), requested on 3 August 2026 and identified by the Health Service's own letter of 7 July 2026, which recorded that it did not then have sufficient information to assess psychosocial hazards affecting my return to work. No assessment has been undertaken. If a "genuine safety issue" is relied on to displace the status quo under clause 1.11.4, that should be put in writing with the hazard, the assessment, and the control measures considered in the order required by section 36 of the Work Health and Safety Regulation 2011, as set out in the Stage 1 notice.
- 2.6 Remaining unanswered items of the Stage 1 notice and my response, to the extent not already covered by 2.1 to 2.5, including: provision of copies of the preserved Human Resources policies listed in Schedule 2 of EB12 which bear on this dispute, being at least E12 (Individual employee grievances) and E13 (Workplace Harassment); the roster and payroll record for the twelve months preceding 3 July 2026; the answers to questions 3.6 and 3.7 of my response (who is conducting the review and by when; information provided to my income protection insurer); and any other unanswered request in those documents.

3 What this referral does not include

My separate request of 3 August 2026 under clause 10.3.2 for a change in the way I work is not part of this dispute. It continues on its own timeframe under clauses 10.3.4 to 10.3.6. Nothing in this referral limits clause 1.12.2 (employee grievance procedure does not limit other dispute resolution provisions) or any other avenue.

4 Arrangements

Clause 1.11.2(b) provides that the management representative shall arrange a conference of the parties, and that the process should not extend beyond seven days from this referral. I am available at any time, with my support person and union representative present. I ask that whoever attends for the Health Service have authority to resolve the matters at 2.1 to 2.6, and that the answers to the seven questions of my response of 4 August 2026 (sent 5 August 2026) be available at the conference. I will provide anything further required the same day it is requested.

I remain ready, willing and able to work, and my object in this referral is unchanged: to return to work, paid, under the certified restrictions, with the matters above resolved in the ordinary way.

Yours sincerely,
Cory Lea Shepherd

Instruments and policies relied on in this referral (for ease of conference preparation)

EB12: clauses 1.11, 1.11.1, 1.11.2(a)–(b), 1.11.4, 1.11.5, 1.12.2, 7.1.5, 7.1.11, 7.2, 7.2.2, 9.12.1; Schedule 2 preserved HR policies including E12 (Individual employee grievances) and E13 (Workplace Harassment). Directive 12/24: Special Leave; HR Policy C7. Workplace rehabilitation standard QH-IMP-401-5. Public Sector Act 2022 s 101 (if suspension is the characterisation). Industrial Relations Act 2016 s 33 (recreation leave timing). Work Health and Safety Regulation 2011 s 36 (control measures, if genuine safety issue is relied on). Managing the risk of psychosocial hazards at work Code of Practice 2022. Code of Conduct for the Queensland Public Service (cl 1.2 — conflict of interest, as raised without allegation in the Stage 1 notice). Clause 10.3.2–10.3.6 is noted only to exclude it from this dispute.